

No. 23-13396

**UNITED STATES COURT OF APPEALS
FOR THE ELEVENTH CIRCUIT**

AMERICAN SECURITIES ASSOCIATION AND CITADEL SECURITIES LLC,
Petitioners,

v.

UNITED STATES SECURITIES AND EXCHANGE COMMISSION,
Respondent,

THE NASDAQ STOCK MARKET, LLC, NASDAQ BX, INC., NASDAQ GEMX, LLC,
NASDAQ ISE, LLC, NASDAQ MRX, LLC, ET AL.,

Intervenors.

Petition for Review of an Order of
the Securities and Exchange Commission
Release No. 34-98290; File No. 4-698

Motion to Withdraw Appearance of Joshua T. Hoyt

Joshua T. Hoyt
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*Counsel for Petitioner
Citadel Securities LLC*

CERTIFICATE OF INTERESTED PERSONS

1. **Alternative Investment Management Association**, *Amicus Curiae*.
2. **Altman, Jennifer G.**, Pillsbury Winthrop Shaw Pittman LLP, counsel for NYSE Intervenor.
3. **American Free Enterprise Chamber of Commerce**, *Amicus Curiae*.
4. **American Securities Association**, Petitioner.
5. **ArentFox Schiff LLP**, counsel for Intervenor Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., Cboe C2 Exchange, Inc., and Cboe Exchange, Inc.
6. **Ashbrook Byrne Kresge LLC**, counsel for *Amici Curiae* James Overdahl and S.P Kothari.
7. **Bailey, Andrew**, counsel for *Amicus Curiae* State of Missouri.
8. **Ballard Spahr LLP**, counsel for Intervenor The Nasdaq Stock Market LLC, Nasdaq BX, Inc., Nasdaq GEMX, LLC, Nasdaq ISE, LLC, Nasdaq MRX, LLC, and Nasdaq PHLX LLC.
9. **Baltz, Brian J.**, Willkie Farr & Gallagher LLP, counsel for *Amicus Curiae* Futures Industry Association.
10. **Barbero, Megan**, counsel for Respondent United States Securities and Exchange Commission.
11. **Barr, William P.**, Torridon Law PLLC, counsel for *Amicus Curiae* American Free Enterprise Chamber of Commerce.
12. **Bash, John F.**, Quinn Emanuel Urquhart & Sullivan, LLP, counsel for *Amici Curiae* Senator Tom Cotton et al.
13. **Berman, Ari M.**, Pillsbury Winthrop Shaw Pittman LLP, counsel for NYSE Intervenor.
14. **Berry, Jonathan**, Boyden Gray PLLC, counsel for *Amicus Curiae* American Free Enterprise Chamber of Commerce.

15. **Bird, Brenna**, counsel for *Amicus Curiae* State of Iowa.
16. **Blask, Ariel**, Willkie Farr & Gallagher LLP, counsel for *Amicus Curiae* Futures Industry Association.
17. **Boden, Anastasia**, counsel for *Amici Curiae* Cato Institute and Investor Choice Advocates Network.
18. **Borse Dubai Limited**, owner of more than 10% of Nasdaq, Inc.'s shares.
19. **BOX Exchange LLC**, member and participant of Consolidated Audit Trail, LLC.
20. **Boyle, Gregory**, Jenner & Block LLP, counsel for Intervenor Consolidated Audit Trail, LLC.
21. **Boyden Gray PLLC**, counsel for *Amicus Curiae* American Free Enterprise Chamber of Commerce.
22. **Bronni, Nicholas J.**, counsel for *Amicus Curiae* State of Arkansas.
23. **Cato Institute**, *Amicus Curiae*.
24. **Carr, Chris**, counsel for *Amicus Curiae* State of Georgia
25. **Cboe BYX Exchange, Inc.**, Intervenor and member and participant of Intervenor Consolidated Audit Trail, LLC.
26. **Cboe BZX Exchange, Inc.**, Intervenor and member and participant of Intervenor Consolidated Audit Trail, LLC.
27. **Cboe C2 Exchange, Inc.**, Intervenor and member and participant of Intervenor Consolidated Audit Trail, LLC.
28. **Cboe EDGA Exchange, Inc.**, Intervenor and member and participant of Intervenor Consolidated Audit Trail, LLC.
29. **Cboe EDGX Exchange, Inc.**, Intervenor and member and participant of Intervenor Consolidated Audit Trail, LLC.
30. **Cboe Exchange, Inc.**, Intervenor and member and participant of Intervenor Consolidated Audit Trail, LLC.
31. **Cboe Global Markets, Inc. (BATS: CBOE)**, direct or indirect parent company of Intervenor Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe

EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., Cboe C2 Exchange, Inc.,
and Cboe Exchange, Inc.

32. **Chenoweth, Mark S.**, counsel for *Amicus Curiae* New Civil Liberties Alliance.
33. **Citadel Securities GP LLC**, parent company of Petitioner Citadel Securities LLC.
34. **Citadel Securities LLC**, Petitioner.
35. **Coleman, Russell**, counsel for *Amicus Curiae* Commonwealth of Kentucky.
36. **Committee on Capital Markets Regulation**, *Amicus Curiae*.
37. **Commonwealth of Kentucky**, *Amicus Curiae*.
38. **Commonwealth of Virginia**, *Amicus Curiae*.
39. **Competitive Enterprise Institute**, *Amicus Curiae*.
40. **Conley, Michael A.**, counsel for Respondent United States Securities and Exchange Commission.
41. **Connolly, J. Michael**, Consovoy McCarthy PLLC, counsel for Petitioner American Securities Association.
42. **Consolidated Audit Trail, LLC**, Intervenor.
43. **Consovoy McCarthy PLLC**, counsel for Petitioner American Securities Association.
44. **Deutsch, Elizabeth, Jenner & Block LLP**, counsel for Intervenor Consolidated Audit Trail, LLC.
45. **Financial Industry Regulatory Authority, Inc.**, member and participant of Intervenor Consolidated Audit Trail, LLC.
46. **Fitch, Lynn**, counsel for *Amicus Curiae* State of Mississippi.
47. **Flowers, Benjamin M.**, Ashbrook Byrne Kresge LLC, counsel for *Amici Curiae* James Overdahl and S.P. Kothari.
48. **Formella, John M.**, counsel for *Amicus Curiae* State of New Hampshire.

49. **Francisco, Noel J.**, Jones Day, counsel for Petitioner Citadel Securities LLC.
50. **Futures Industry Association**, *Amicus Curiae*.
51. **Gershengorn, Ian Heath**, Jenner & Block LLP, counsel for Intervenor Consolidated Audit Trail, LLC.
52. **Greenberg, Dan**, counsel for *Amicus Curiae* Competitive Enterprise Institute.
53. **Greenwalt III, Paul E.**, ArentFox Schiff LLP, counsel for Intervenor Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., Cboe C2 Exchange, Inc., and Cboe Exchange, Inc.
54. **Griffin, Tim**, counsel for *Amicus Curiae* State of Arkansas.
55. **Hardin, Tracey A.**, counsel for Respondent United States Securities and Exchange Commission.
56. **Hilgers, Michael T.**, counsel for *Amicus Curiae* State of Nebraska.
57. **Hopen, David A.**, Paul, Weiss, Rifkind, Wharton & Garrison LLP, counsel for *Amici Curiae* Securities Industry and Financial Markets Association et al.
58. **Hoyt, Joshua T.**, Jones Day, counsel for Petitioner Citadel Securities LLC.
59. **Intercontinental Exchange, Inc. (NYSE: ICE)**, indirect parent of NYSE Intervenor.
60. **International Securities Exchange Holdings, Inc.**, sole LLC member of Intervenor Nasdaq GEMX LLC, Nasdaq ISE LLC, and Nasdaq MRX LLC.
61. **Investment Company Institute**, *Amicus Curiae*.
62. **Investor AB (Nasdaq Stockholm: INVEB)**, owner of more than 10% of Nasdaq, Inc.'s shares.
63. **Investor Choice Advocates Network**, *Amicus Curiae*.
64. **Investors' Exchange, LLC**, member and participant of Intervenor Consolidated Audit Trail, LLC.
65. **Jackley, Marty**, counsel for *Amicus Curiae* State of South Dakota.
66. **Jacobs, Dylan, L.**, counsel for *Amicus Curiae* State of Arkansas.

67. **Jenner & Block LLP**, counsel for Intervenor Consolidated Audit Trail, LLC.
68. **Jones Day**, counsel for Petitioner Citadel Securities LLC.
69. **Kastenberg, Stephen J.**, Ballard Spahr LLP, counsel for Intervenor The Nasdaq Stock Market LLC, Nasdaq BX, Inc., Nasdaq GEMX, LLC, Nasdaq ISE, LLC, Nasdaq MRX, LLC, and Nasdaq PHLX LLC.
70. **Katsiff, Timothy D.**, Ballard Spahr LLP, counsel for Intervenor The Nasdaq Stock Market LLC, Nasdaq BX, Inc., Nasdaq GEMX, LLC, Nasdaq ISE, LLC, Nasdaq MRX, LLC, and Nasdaq PHLX LLC.
71. **Kennedy, Jordan**, counsel for Respondent United States Securities and Exchange Commission.
72. **Knudsen, Austin**, counsel for *Amicus Curiae* State of Montana.
73. **Kobach, Kris W.**, counsel for *Amicus Curiae* State of Kansas.
74. **Kothari, S.P.**, *Amicus Curiae*.
75. **Kumar, Neal**, Willkie Farr & Gallagher LLP, counsel for *Amicus Curiae* Futures Industry Association.
76. **Labrador, Raúl R.**, counsel for *Amicus Curiae* State of Idaho.
77. **Lantieri III, Paul**, Ballard Spahr LLP, counsel for Intervenor The Nasdaq Stock Market LLC, Nasdaq BX, Inc., Nasdaq GEMX, LLC, Nasdaq ISE, LLC, Nasdaq MRX, LLC, and Nasdaq PHLX LLC.
78. **Little, Margaret A.**, counsel for *Amicus Curiae* New Civil Liberties Alliance.
79. **Lipshutz, Brian M.**, Paul, Weiss, Rifkind, Wharton & Garrison LLP, counsel for *Amici Curiae* Securities Industry and Financial Markets Association et al.
80. **Long-Term Stock Exchange, Inc.**, member and participant of Intervenor Consolidated Audit Trail, LLC.
81. **Lucas, Brinton**, Jones Day, counsel for Petitioner Citadel Securities LLC.
82. **MacLean, Matthew J.**, Pillsbury Winthrop Shaw Pittman LLP, counsel for NYSE Intervenor.
83. **Managed Funds Association**, *Amicus Curiae*.

84. **Marshall, Jonathan J.**, Jenner & Block LLP, counsel for Intervenor Consolidated Audit Trail, LLC.
85. **Marshall, Steve**, counsel for *Amicus Curiae* State of Alabama.
86. **Matro, Daniel E.**, counsel for Respondent United States Securities and Exchange Commission.
87. **McCotter, R. Trent**, Boyden Gray PLLC, counsel for *Amicus Curiae* American Free Enterprise Chamber of Commerce.
88. **MEMX LLC**, member and participant of Intervenor Consolidated Audit Trail, LLC.
89. **Miami International Securities Exchange LLC**, member and participant of Intervenor Consolidated Audit Trail, LLC.
90. **MIAX Emerald, LLC**, member and participant of Intervenor Consolidated Audit Trail, LLC.
91. **MIAX Pearl, LLC**, member and participant of Intervenor Consolidated Audit Trail, LLC.
92. **MIAX Sapphire, LLC**, member and participant of Intervenor Consolidated Audit Trail, LLC.
93. **Michel, Christopher G.**, Quinn Emanuel Urquhart & Sullivan, LLP, counsel for *Amici Curiae* Senator Tom Cotton et al.
94. **Miyares, Jason**, counsel for *Amicus Curiae* Commonwealth of Virginia.
95. **Modern Markets Initiative, Inc.**, sponsor of funding for brief for *Amici Curiae* James Overdahl and S.P. Kothari disclosed pursuant to Federal Rule of Appellate Procedure 29(a)(4)(E).
96. **Molzberger, Michael**, ArentFox Schiff LLP, counsel for Intervenor Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., Cboe C2 Exchange, Inc., and Cboe Exchange, Inc.
97. **Montgomery, Sophia W.**, Jenner & Block LLP, counsel for Intervenor Consolidated Audit Trail, LLC.
98. **Moody, Ashley**, counsel for *Amicus Curiae* State of Florida.

99. **Morris, Andrew, J.**, counsel for *Amicus Curiae* New Civil Liberties Alliance.
100. **Morrissey, Patrick**, counsel for *Amicus Curiae* State of West Virginia.
101. **Murrill, Liz**, counsel for *Amicus Curiae* State of Louisiana.
102. **Nabors, David A.**, Quinn Emanuel Urquhart & Sullivan, LLP, counsel for *Amici Curiae* Tom Cotton et al.
103. **Nasdaq BX, Inc.**, Intervenor and member and participant of Intervenor Consolidated Audit Trail, LLC.
104. **Nasdaq GEMX, LLC**, Intervenor and member and participant of Intervenor Consolidated Audit Trail, LLC.
105. **Nasdaq, Inc. (Nasdaq: NDAQ)**, sole owner of LLC interest in The Nasdaq Stock Market LLC and Nasdaq PHLX LLC and parent company of Nasdaq BX, Inc.
106. **Nasdaq ISE, LLC**, Intervenor and member and participant of Intervenor Consolidated Audit Trail, LLC.
107. **Nasdaq MRX, LLC**, Intervenor and member and participant of Intervenor Consolidated Audit Trail, LLC.
108. **Nasdaq PHLX LLC**, Intervenor and member and participant of Intervenor Consolidated Audit Trail, LLC.
109. **New York Stock Exchange LLC**, Intervenor and member and participant of Intervenor Consolidated Audit Trail, LLC.
110. **New Civil Liberties Alliance**, *Amicus Curiae*.
111. **NYSE American LLC**, Intervenor and member and participant of Intervenor Consolidated Audit Trail, LLC.
112. **NYSE Arca, Inc.**, Intervenor and member and participant of Intervenor Consolidated Audit Trail, LLC.
113. **NYSE Chicago, Inc.**, Intervenor and member and participant of Intervenor Consolidated Audit Trail, LLC.

114. **NYSE National, Inc.**, Intervenor and member and participant of Intervenor Consolidated Audit Trail, LLC.
115. **Oliwenstein, David**, Pillsbury Winthrop Shaw Pittman LLP, counsel for NYSE Intervenors.
116. **Orr, Caleb**, Boyden Gray PLLC, counsel for *Amicus Curiae* American Free Enterprise Chamber of Commerce.
117. **Overdahl, James**, *Amicus Curiae*.
118. **Paul, Weiss, Rifkind, Wharton & Garrison LLP**, counsel for *Amici Curiae* Securities Industry and Financial Markets Association et al.
119. **Paxton, Ken**, counsel for *Amicus Curiae* State of Texas.
120. **Phillips, David**, Jones Day, counsel for Petitioner Citadel Securities LLC.
121. **Pillsbury Winthrop Shaw Pittman LLP**, counsel for NYSE Intervenors.
122. **Quinn Emanuel Urquhart & Sullivan, LLP**, counsel for *Amici Curiae* Senator Tom Cotton et al.
123. **Rabbitt, Brian C.**, Jones Day, counsel for Petitioner Citadel Securities LLC.
124. **Reisner, Lorin L.**, Paul, Weiss, Rifkind, Wharton & Garrison LLP, counsel for *Amici Curiae* Securities Industry and Financial Markets Association et al.
125. **Representatives Mark Alford, Don Bacon, Michael Collins, Scott Fitzgerald, French Hill, Barry Loudermilk, Alex X. Mooney, Ralph Norman, John Rose, Keith Self, Randy Weber, and Steve Womack**, *Amici Curiae*.
126. **Reyes, Sean**, counsel for *Amicus Curiae* State of Utah.
127. **Rokita, Theodore E.**, counsel for *Amicus Curiae* State of Indiana.
128. **Roth, Yaakov M.**, Jones Day, counsel for Petitioner Citadel Securities LLC.
129. **Schulp, Jennifer**, counsel for *Amici Curiae* Cato Institute and Investor Choice Advocates Network.
130. **Schwartz, Yishai**, Paul, Weiss, Rifkind, Wharton & Garrison LLP, counsel for *Amici Curiae* Securities Industry and Financial Markets Association et al.

131. **Securities Industry and Financial Markets Association**, *Amicus Curiae*.
132. **Senators Tom Cotton, John Boozman, Mike Braun, Kevin Kramer, Steve Daines, Bill Hagerty, John Kennedy, Jerry Moran, Pete Ricketts, and Tim Scott**, *Amici Curiae*.
133. **Shanmugam, Kannon K.**, Paul, Weiss, Rifkind, Wharton & Garrison LLP, counsel for *Amici Curiae*, Securities Industry and Financial Markets Association et al.
134. **Skorup, Brent**, counsel for *Amici Curiae* Cato Institute and Investor Choice Advocates Network.
135. **Sobel, Zachary J.**, Quinn Emanuel Urquhart & Sullivan, LLP, counsel for *Amici Curiae* Senator Tom Cotton et al.
136. **State of Alabama**, *Amicus Curiae*.
137. **State of Arkansas**, *Amicus Curiae*.
138. **State of Florida**, *Amicus Curiae*.
139. **State of Georgia**, *Amicus Curiae*.
140. **State of Idaho**, *Amicus Curiae*.
141. **State of Indiana**, *Amicus Curiae*.
142. **State of Iowa**, *Amicus Curiae*.
143. **State of Kansas**, *Amicus Curiae*.
144. **State of Louisiana**, *Amicus Curiae*.
145. **State of Mississippi**, *Amicus Curiae*.
146. **State of Missouri**, *Amicus Curiae*.
147. **State of Montana**, *Amicus Curiae*.
148. **State of Nebraska**, *Amicus Curiae*.
149. **State of New Hampshire**, *Amicus Curiae*.

150. **State of North Dakota**, *Amicus Curiae*.
151. **State of Ohio**, *Amicus Curiae*.
152. **State of South Carolina**, *Amicus Curiae*.
153. **State of South Dakota**, *Amicus Curiae*.
154. **State of Texas**, *Amicus Curiae*.
155. **State of Utah**, *Amicus Curiae*.
156. **State of West Virginia**, *Amicus Curiae*.
157. **The Nasdaq Stock Market LLC**, Intervenor and member and participant of Intervenor Consolidated Audit Trail, LLC.
158. **The Vanguard Group, Inc.**, owned 10% or more of Cboe Global Markets, Inc.'s common stock as of June 30, 2023.
159. **Thoma Bravo UGP, LLC**, owner of more than 10% of Nasdaq, Inc.'s shares.
160. **Torridon Law PLLC**, counsel for *Amicus Curiae* American Free Enterprise Chamber of Commerce.
161. **Unikowsky, Adam G.**, Jenner & Block LLP, counsel for Intervenor Consolidated Audit Trail, LLC.
162. **United States Securities and Exchange Commission**, Respondent.
163. **Virtu Financial, Inc.**, *Amicus Curiae*.
164. **Watkins, Devin**, counsel for *Amicus Curiae* Competitive Enterprise Institute.
165. **Willkie Farr & Gallagher LLP**, counsel for *Amicus Curiae* Futures Industry Association.
166. **Wilson, Alan**, counsel for *Amicus Curiae* State of South Carolina.
167. **Wrigley, Drew H.**, counsel for *Amicus Curiae* State of North Dakota.
168. **Yost, Dave**, counsel for *Amicus Curiae* State of Ohio.

Dated: January 21, 2025

Respectfully submitted,

/s/ Joshua T. Hoyt
Joshua T. Hoyt
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Counsel for Petitioner
Citadel Securities LLC

CORPORATE DISCLOSURE STATEMENT

Pursuant to Federal Rule of Appellate Procedure 26.1 and 11th Circuit Rule 26.1-2, the undersigned counsel hereby certifies that Petitioner Citadel Securities LLC is a wholly owned, indirect subsidiary of Citadel Securities GP LLC. Counsel further certifies that no publicly held corporation has a 10% or greater ownership interest in Citadel Securities GP LLC.

Dated: January 21, 2025

Respectfully submitted,

/s/ Joshua T. Hoyt
Joshua T. Hoyt
JONES DAY
51 Louisiana Ave., NW
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*Counsel for Petitioner
Citadel Securities LLC*

Joshua T. Hoyt hereby moves to withdraw as counsel for Petitioner Citadel Securities LLC. Mr. Hoyt will soon leave Jones Day. Citadel Securities will continue to be represented by other attorneys who have appeared on its behalf.

Dated: January 21, 2025

Respectfully submitted,

/s/ Joshua T. Hoyt

Joshua T. Hoyt

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Counsel for Petitioner

Citadel Securities LLC

CERTIFICATE OF COMPLIANCE

I certify that this Motion complies with (1) the type-volume limitations of Federal Rule of Appellate Procedure 27(d)(2)(A) because it contains 37 words, excluding any parts exempted by Rule 27(a)(2)(B); and (2) the typeface and type-style requirements of Rule 27(d)(1)(E) because it has been prepared in 14-point Garamond (a proportionally spaced typeface) using Microsoft Word.

Dated: January 21, 2025

Respectfully submitted,

/s/ Joshua T. Hoyt

*Counsel for Petitioner
Citadel Securities LLC*

CERTIFICATE OF ELECTRONIC SUBMISSION

I certify that: (1) any required privacy redactions have been made; (2) the electronic submission of this document is an exact copy of any corresponding paper document; and (3) the document has been scanned for viruses with the most recent version of a commercial virus scanning program and is free from viruses.

Dated: January 21, 2025

Respectfully submitted,

/s/ Joshua T. Hoyt

*Counsel for Petitioner
Citadel Securities LLC*

CERTIFICATE OF SERVICE

I certify that on January 21, 2025, the foregoing Motion was electronically filed with the United States Court of Appeals for the Eleventh Circuit using the CM/ECF system. I certify that all participants in the case are registered CM/ECF users and that service will be accomplished by the CM/ECF system.

Dated: January 21, 2025

Respectfully submitted,

/s/ Joshua T. Hoyt

*Counsel for Petitioner
Citadel Securities LLC*